23-2-00337-37
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Complaint
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SCANNED 8

IN THE SUPERIOR COURT OF THE STATE OF WASHINGTON IN AND FOR THE COUNTY OF WHATCOM

CLARK BOURGAULT,
an Individual,
Plaintiff,

vs.

THE CITY OF BELLINGHAM POLICE DEPARTMENT and THE THE CITY OF BELLINGHAM and JOHN and JANE 1-10

Defendants.

No. 23 2 00337 37

COMPLAINT FOR DAMAGES

EVAN P. JONES

INTRODUCTION

1. The Mayor of the City of Bellingham (the City) issued an Executive Order requiring all City employees to be vaccinated. The City employees were instructed to submit a request for accommodation, and the Plaintiff did submit such a request. Clark Bourgault (Plaintiff) was a Police Officer employed by the Bellingham Police Department (BPD). The Plaintiff applied for

a religious exemption from the vaccine due to his sincerely held religious beliefs. No meetings were held to determine if an accommodation for people of faith who held sincere religious convictions against ingesting the COVID-19 vaccines were made. These actions show a premeditated determination to deny accommodations and a failure on the part of the City to afford employees of faith an interactive accommodation process. Plaintiff seeks redress for this violation of law.

2. The Plaintiff seeks relief in the form of declaratory relief and damages against Defendants, and all those in active concert, from abridging Plaintiff's statutorily protected rights guaranteed to them by Title VII 42 USC §2000(e) and Washington Law Against Discrimination, RCW 49.60.030 et. seq.

3. Plaintiff is also asking this Court for a *de novo* review of the accommodation process and the failure of the City to actively engage therein.

JURISDICTION AND VENUE

4. This Court has jurisdiction over this action pursuant to the Revised Code of Washington 2.08.010

5. Plaintiff's claims for declaratory relief are authorized by RCW 7.24.010, Civil Rules 57 and 65, and the general legal and equitable powers of this Court, which empower this Court to grant the requested relief.

6. Venue is proper within this judicial district and division, pursuant to RCW 4.12.025, because the Defendant, the City of Bellingham carrying out the business in the State and acting under color of law at headquarters located in Bellingham, Whatcom County.

7. This court has supplemental jurisdiction over federal claims under 42 U.S.C. §2000e.

PARTIES

8. Plaintiff submitted a request for a religious exemption and was exempted, but was not given a reasonable accommodation.

9. The City is charged by Proclamation 21-14 et. seq. and Executive Order 2021-2 et. seq., with requiring all of its employees to be vaccinated or to submit a religious/medical exemption. BPD was the employer of both of the Plaintiff in this case.

10. The true names and capacities, whether individual, corporate, associate, or otherwise, of Does 1 through 10, inclusive, are unknown to the Plaintiff at this time, who therefore sues said Defendants by such fictitious names. Plaintiff believes and alleges that each of the fictitiously named Defendants are in some way responsible for, or participated in, or contributed to, the matters and things complained of herein, and are legally responsible in some manner. Plaintiff will seek leave to amend this Complaint when the true names, capacities, participation, and responsibilities have been ascertained.

11. Plaintiff is informed and believes, and thereon alleges, that at all times herein mentioned the Defendants acted to discriminate and deprive him of his rights to fair treatment and due process; in so doing, the things hereinafter complained of, the Defendants were acting within the course and scope of such agency and/or employment, and with the knowledge and consent of the remaining Defendants.

FACTS

12. On September 21, 2021, Seth Fleetwood, the Mayor of the City, issued Executive order 2021-02 mandating that, "All City employees are required to be fully vaccinated against the COVID-19 virus as a condition of employment no later than December 3, 2021." In the same Executive Order, Mayor Fleetwood states, "Employees seeking reasonable accommodations for legitimate medical reasons or sincerely held religious beliefs may apply for an accommodation no later than close of business on October 15, 2021."

13. Plaintiff, who was an Officer on the BPD, applied for a religious exemption in a timely manner stating that he had sincerely held religious beliefs and convictions that prevented him from taking the COVID-19 vaccination.

14. In a letter dated October 25, 2021, the City accepted Plaintiff's sincerely held religious beliefs against the COVID-19 vaccination but they denied Plaintiff's request for a reasonable accommodation. Even though some the measures requested by the Plaintiff were the same measures the City was using before and after the mandate went into affect.

15. Plaintiff was terminated from his job of more than 13 years on January 4, 2022 in violation of his religious and civil rights that he asserted under Title VII of the 1964 Civil Rights Act and under the Washington Law against Discrimination (WLAD) 49.60.030 et. seq.

16. As a result of the denial of the request for a religious accommodation under Title VII and WLAD, the Plaintiff has been terminated from his employment with BPD. This constitutes an adverse employment action, and comes on the heels of the Plaintiff asserting his protected rights as a members of a protected class.

17. Plaintiff received his right to sue letter from the Equal Employment Opportunity Commission on January 15, 2022.

18. Plaintiff also filed a claim for damages form with the City on or about March 15, 2022. It has been more than 60 days since this claim for damages form was received and the City denied the claim. Therefore, the Plaintiff has complied with RCW 4.96.020.

FIRST CAUSE OF ACTION

Violation of Title VII of the 1964 Civil Rights Act, 42 USC §2000e Against Defendants forFailure to Accommodate

19. Plaintiff re-alleges the facts above and incorporate those herein by reference as if fully alleged.

20. By submitting a request for religious accommodation under Title VII, the Plaintiff engaged in actions protected by federal law.

21. Plaintiff apprised the Defendants of his sincerely held religious beliefs and was exempted from the COVID-19 vaccine requirement.

22. The Defendants subjected the Plaintiff to adverse employment action and the Plaintiff lost his jobs due to his sincerely held religious beliefs.

23. The Defendants refused to entertain requests for religious accommodations under Title VII and WLAD and did not engage in a meaningful analysis of the requested accommodation.

24. Wherefore, Plaintiff brings this claim under 42 U.S.C. § 2000(e) and requests the relief set forth below in the prayer for relief.

SECOND CAUSE OF ACTION:

Violation of State Law Prohibiting Religious Discrimination

[RCW 49.60.030 *et seq.*]

25. Plaintiff refers to and hereby incorporates the foregoing paragraphs 1-25 as though fully set forth herein.

26. Like Title VII, the Washington Law Against Discrimination ("WLAD"), codified at RCW 49.60.030 *et seq.*, prohibits employers from discharging individuals from employment on the basis of religion.

27. Because Washington's State law prohibiting employers from discriminating on the basis of religion is modeled after Title VII, and because the analysis for religious discrimination claims under both statutes is identical, Plaintiff has not restated the facts as set forth in their first cause of action, but those facts are already incorporated as though fully set forth herein.

28. Under 42 U.S.C. § 2000e-7, nothing in 42 U.S.C. § 1981a(b)(3), which caps the amount of non-pecuniary and punitive damages that can be awarded to Plaintiff, "shall be deemed to exempt or relieve any person from liability, duty, penalty, or punishment provided by any present or future law of any State[.]" In other words, a Washington jury is free to exceed any applicable federal dollar limit in accordance with Washington law.

29. As stated *supra*, Plaintiff has endured mental suffering and emotional distress due to the discriminatory treatment he has suffered at the hands of Defendants.

30. Based on the foregoing, in addition to violating Title VII, Defendants have violated the WLAD.

PRAYER FOR RELIEF

Wherefore, Plaintiff requests that the Court enter judgment in their favor, and against the Defendants, for full relief, including the following:

1. Damages including lost wages, benefits, and all other lost income stemming from the discriminatory actions of Defendants.
2. Attorney's fees and costs; and,
3. Declaratory relief that the City and the BPD, failed to implement policies and procedures that encouraged engaging in a meaningful analysis of what accommodations may be made for those protected by Title VII when asserting their sincerely held religious beliefs against being vaccinated; in so doing the City and the BPD denied the Plaintiff of their rights and entitlements at law.
4. Declaratory relief that the accommodation process failed to meet the minimum standards required at law under *De Novo* review.
5. Enter a judgment that the acts and practices of the Defendants complained of herein are in violation of state law and/or common law;
6. Award the Plaintiff compensation for all present, and future lost wages; including without limitation and any other relief this Court deems necessary;
7. Award the Plaintiff the costs of this action, including the fees and costs of experts, together with reasonable attorney's fees.
8. Award the Plaintiff total general and special damages in an amount to be proven at the time of trial.
9. Grant the Plaintiff such additional and further relief as this Court deems necessary, just, and

equitable.

Respectfully Submitted this 7th day of March, 2023.

Pacific Justice Institute

/s/Harold H. Franklin, Jr.
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